

Uber Health Overview and FAQ

This document has been prepared by Uber Health Legal for the purposes of providing a general overview of Uber Health and addressing frequently asked questions. The intended recipients are prospective companies, particularly a company's internal legal team, who are seeking to establish an Uber Health account. Note that terms and products are subject to change, and for any specific inquiries beyond this document, please refer to the Uber Health terms and conditions or contact Uber Health Legal.

FAQ

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What is Uber Health in relation to Uber?

[Uber Technologies, Inc.](#) (["Uber"](#)) is a global, publicly traded company which provides a technology network that connects people and businesses to independent third-party transportation and delivery providers (i.e. drivers/couriers). The drivers/couriers are independent contractors, which is an important aspect of Uber's business model.

[Uber Health, LLC](#) (["Uber Health"](#)) is a wholly owned subsidiary of Uber. Uber Health partners with healthcare organizations, including providers, health systems, hospitals and clinics, health plans, and transportation brokers to connect them to drivers for transportation for patients, caregivers, and staff, as well as couriers for delivery of grocery, over the counter ("OTC") and certain prescription drugs, and other items. Uber Health's mission is to enable equitable access to care by matching supply with demand through technology.

Uber and Uber Health are not:

- Taxi companies
- Transportation services providers
- Delivery services providers
- Traditional enterprise "vendors"

- Software as a service (“SaaS”) providers
- Traditional transportation brokers

What technology solution does Uber Health offer, and how does the contract structure reflect it?

Uber Health offers a HIPAA-enabled *web-based* dashboard (not a mobile app) or API solution for healthcare organizations to arrange and pay for rides and deliveries on behalf of others using the same on-demand partners as Uber.

Uber Health provides a suite of enterprise products utilized to request service(s) on behalf of clients, customers, employees, patients, and/or other individuals. The primary agreement containing general terms and conditions that governs the use of all Uber Health products is the Terms of Use (“TOU”). Each Uber Health product is described in the corresponding Product Addendums as follows:

- [Dashboard](#): allows companies to manage rides
- *API*: allows companies to manage rides through an API integration
- *Broker Dashboard*: allows companies to access and use the Dashboard via the Uber Health’s web-based online administrative portal for the purpose of accessing and providing Uber Health services to their customers and downstream customer riders/eaters
- *Broker API*: allows companies to utilize the Broker Dashboard to enable and use the API for the purpose of accessing and providing Uber Health services to their customers and downstream customer riders/eaters
- *Item Delivery*: feature on the Dashboard and Broker Dashboard that allows companies to manage item delivery
- [Rx Delivery](#): feature on the Dashboard and Broker Dashboard that allows companies to request delivery of pharmacy products
- *Eligibility and Benefits & Member Management*: feature on the Dashboard and Broker Dashboard that allows companies to create member profiles, set custom benefit structures, upload eligibility files, and track real-time utilization for their members/patients
- [Grocery](#): feature on the Dashboard and Broker Dashboard that allows companies to order grocery and over-the counter delivery via UberEats on behalf of their patients
- *3P NEMT*: feature on the Dashboard and Broker Dashboard that allows companies to request non-emergency medical transportation (NEMT) door-to-door and wheelchair rides by third party, credential drivers

Each Product Addendum gives a company access to utilize the particular product described in that addendum (i.e., Dashboard, API, etc.).

Does a rider or delivery recipient need to have the Uber app or have used Uber before?

In the context of Uber Health’s enterprise products, riders and delivery recipients are generally patients, clinical staff, or caregivers (“End User”). Uber Caregiver is a consumer-oriented product and discussed separately.

End Users do *not* need to be an existing Uber rider or eater or have the Uber app installed. Furthermore, an End User does not necessarily need to have a mobile phone.

If an End User has a mobile phone, they are contacted by text and a call at the time the ride or delivery is requested by the healthcare organization and with trip details when a driver is on the way to pick the rider up or the courier is on the way with the delivery.

If an End User does *not* have a mobile phone, they can still receive an automated call on their landline number when a trip or delivery is scheduled.

If an End User does not have any phones, you as the company coordinating the ride can give the End User's caregiver the details or call them directly (i.e. mobile or landline) when the driver or courier is on their way.

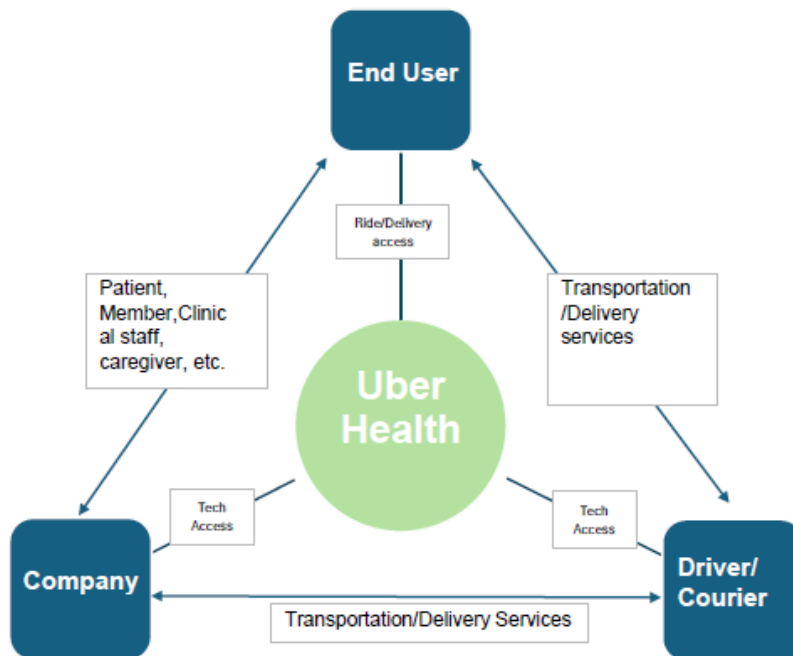
How does pricing work, and why don't I see a fee schedule?

Uber Health does not have a pricing or fee schedule since pricing of trips varies due to dynamic pricing based on real-time market factors. Please see [Uber's price estimator](#). There are generally no minimum fees or upfront costs, and charges are generally incurred for the actual trips taken or deliveries completed.

Furthermore, currently, there are no additional service fees to access the Dashboard or API or its respective product features. However, if Uber Health adds functionality to the Health Dashboard, it retains the right to charge for its Health Products for both business purposes and to comply with healthcare regulations.

What are the relationships involved?

Uber Health has independent contractual relationships with the following parties: company; End Users; drivers; and couriers. When End Users sign up for an Uber account, they agree to Uber's end user terms, including the [terms of use](#) and [privacy notice](#), which govern their use of the Uber app and how and why Uber processes their personal data. The Uber Health agreement with your company typically relates to your company's use of the Uber Health technology solution and does not alter Uber Health's independent relationships with end users. Uber Health has an independent contractual relationship with drivers and couriers.



What are expectations of End Users, and why are there end user terms for End Users?

All End Users on the Uber platform are expected to abide by Uber's end user terms, policies and guidelines, which include the general terms of use for mobility and delivery solutions, the general community guidelines, and privacy notice. Uber Health End Users receive notice of these terms via the SMS every time a trip is scheduled. If the End User is unable to receive the SMS, the organization can communicate these end user terms through other means.

Who are Guest Users?

Guest Users are a small subset of End Users who are not aware of the Uber end user terms at all (e.g., because they cannot receive a link to the terms via SMS). Since Uber Health does not have a direct relationship with the Guest User, Uber Health requires companies to be responsible for the actions of such Guest Users. Uber Health also will work with the company to find alternative means to help an End User accept Uber's end user terms as described here: <https://www.uberhealth.com/us/en/riderterms>.

Why does Uber Health ask customers to get consent from End Users?

Uber Health requires companies utilizing Uber Health enterprise products to obtain consent from their End Users because the companies have a direct relationship with the End Users such as their patients or members. Companies must obtain the consents *before* Uber Health can communicate with the End User,

usually through SMS or phone call. Generally, health providers can obtain patient consent through their existing written consent or authorization processes, but that process is determined by and the responsibility of companies utilizing Uber Health products.

Why are Uber Health agreements on Uber paper?

Uber Health's terms and conditions are specifically tailored to its technology solution, specific parties involved and relationships, and data flows. Traditional MSAs/vendor agreements do not apply and significantly prolong the negotiations, as the agreement is for access to the HIPAA-enabled, web-based dashboard or APIs. Again, Uber Health is a technology company with drivers who are independent providers of transportation and delivery services.

What type of data is involved?

Uber Health generally collects minimal data elements which currently includes: name of rider; telephone number; pick-up and drop-off location; and pick-up time. Organizations that want to leverage the Health Dashboard's Member Management and Eligibility and Benefits product features may enter or upload additional information, such as a health plan member identification number.

Uber Health treats certain data from healthcare organizations as electronic protected health information ("e-PHI"), as defined and covered under HIPAA. In such instances, Uber Health would be considered a "Business Associate" and Company would be considered a "Covered Entity" under HIPAA.

Does Uber Health enter into Business Associate Agreements ("BAA")?

Yes, Uber Health's standard terms contain a BAA that is reflective of general HIPAA requirements. As indicated above, Uber Health's agreement templates, including such BAA terms, are drafted to flow with its agreement structure that is tailored to its technology solution and comply with HIPAA.

Does Uber Health perform background screenings?

Uber Health ensures that all prospective drivers are screened using third-party vendors accredited by a nationally-recognized background screening organization which includes, but is not limited to, a multijurisdictional criminal database search, national sex offender database search, and Global Watchlist database search. In addition, all drivers and Uber Health employees, officers and board members are subject to healthcare exclusion screenings of the HHS/OIG exclusion list, GSA/SAM exclusion and debarment lists.

For any employees performing material services under an agreement on behalf of Uber Health, Uber Health requires HIPAA privacy and security training, fraud and abuse training, and other training as needed, pursuant to Uber Health's compliance program.

What insurance coverage is there for drivers?

Uber maintains commercial auto insurance on behalf of independent drivers while operating on the Uber app. The limits and types of coverage vary by state, but generally include at least \$1M of third-party liability insurance, and uninsured/underinsured motorists bodily injury coverage, with limits as required by law, once a passenger has entered the vehicle. More details on the Driver Commercial Auto insurance can be found [here](#). Furthermore, more information regarding insurance coverage on a state-by-state basis can be found [here](#).

For products that involve a third party, including Rx Delivery and 3P NEMT, insurance terms are specified in the applicable Product Addendum.

What are expectations for drivers and couriers?

Drivers may differ based on the Uber Health product being utilized by a company, but per above (see background screening), all drivers are screened before being matched to a request.

Generally, Uber Health uses the same drivers for trips as individuals who drive with Uber today. A ride request for an Uber Health ride will look the same to a driver as any other Uber ride request. Uber Health only shares with drivers the minimum information necessary to complete the trip, which generally consists of only a rider's first name and location.

For 3P NEMT rides, while all rides are still requested directly on the Uber Health platform, such NEMT rides are provided by third party traditional healthcare transportation companies (and not a transportation network company like Uber). The third party's credentialed drivers do not use the Uber driver app and are full-time employees specifically trained to assist with physical, visual, or mobility needs.

Rx Delivery is provided by a third party, which manages a network of couriers who include but are not limited to delivery people who use the Uber platform.